

2:00 PM

LINE 11

26-CIV-02242 YANIV COHEN VS. COUNTY OF SAN MATEO

YANIV COHEN
COUNTY OF SAN MATEO

RENATO FLORES
SAN MATEO COUNTY ATTORNEY'S
OFFICE

DEFENDANT COUNTY OF SAN MATEO'S DEMURRER TO PLAINTIFF YANIV COHEN'S COMPLAINT

TENTATIVE RULING:

The hearing has been vacated by notice filed September 4, 2026 because plaintiff filed a first amended complaint, which makes the demurrer moot.

2:00 PM

LINE 12

26-CIV-04669

AVAYA LLC VS. XC EDIFY A, LLC, ET AL.

AVAYA LLC

XC EDIFY A, LLC

PETITION OF CAPKEY ADVISORS, APC TO QUASH OUT OF STATE DEPOSITION SUBPOENA FOR PRODUCTION OF DOCUMENTS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 2029.600

TENTATIVE RULING:

The unopposed Petition to Quash Out-of-State Deposition Subpoena (the “Petition”) brought by Petitioner CapKey Advisors, APC is GRANTED.

Background

Petitioner asserts that it is a non-party to an out-of-state action, pending in Delaware (Case No. C.A. No. N25C-10-253-PAW (CCLD) (the “Lawsuit”)). Pursuant to a statute which is part of the Interstate and International Depositions and Discovery Act (Code Civ. Proc., §§ 2029.100 - 2029.900), Petitioner seeks an Order quashing a Subpoena for Production of Business Records in Action Pending Outside California (the “Deposition Subpoena”) served upon it regarding the Lawsuit, because the Deposition Subpoena would require Petitioner to disclose information protected by the attorney-client privilege, the work-product doctrine, or both.

The Petition Is Granted.

Petitioner is a California professional services corporation which provides legal advice to clients, including Defendant XC Edify – A, LLC (hereinafter, “Defendant” unless otherwise specified), regarding mergers and acquisitions. (Howard Decl., ¶ 2.) The Deposition Subpoena was served upon Petitioner’s Chairman, Rodrigo J. Howard, and its statutory agent for service of process, Joseph B. Hershenson. Mr. Howard is a California-licensed attorney for Defendant, who provided legal services to Defendant regarding a proposed asset purchase agreement (“APA”) involving one of Defendant’s portfolio companies. (*Id.*, ¶¶ 2-3.)

The Deposition Subpoena seeks documents relating to the APA. (*Id.*, ¶ 4, & Exh. A.) Good cause exists to quash the Deposition Subpoena, because the Deposition Subpoena would require Petitioner to disclose information protected by the attorney-client privilege, the work-product doctrine, or both. (*Id.*, ¶ 5.)

Although the discovery sought is to be used in a foreign jurisdiction, California law governs this issue. (Code Civ. Proc., § 2029.500.) If a dispute such as the instant arises, any party may petition the Superior Court where the discovery is to be conducted for an Order quashing the subpoena (*inter alia*). (Code Civ. Proc., § 2029.600, subd. (a).)

Strong policy considerations disfavor deposing opposing counsel, so that, “Depositions of opposing counsel are presumptively improper, severely restricted, and require ‘extremely’ good
